

IN THE HIGH COURT OF BOMBAY AT GOA
AT PORVORIM – GOA

A.A.R. No. of 2024

Mr. Vikram Shah

... Applicant

Versus

Mr. Riva Trindade & Ors.

... Respondents

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Porvorim – Goa

12.04.2024

(Advocate for the Applicant)

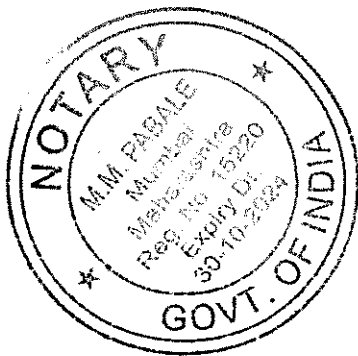
IN THE HIGH COURT OF BOMBAY AT GOA
AT PANAJI – GOA

A.A.R. No. of 2021

IN THE MATTER OF CLAUSE 35 OF
THE ARTICLES OF ASSOCIATION
DATED 01.04.2013.

AND

IN THE MATTER OF NOTICE OF
ARBITRATION DATED 28.02.2024.



AND

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IN THE MATTER OF SECTION 11 OF
THE ARBITRATION &
CONCILIATION ACT, 1996.

MR. VIKRAM SHAH

Son of late Chinubhai Shah,

Aged 73 years, Indian,

Residing at 28, Capri, Manav Mandir Road,

Walkeshwar, Mumbai – 400 006.

... Applicant

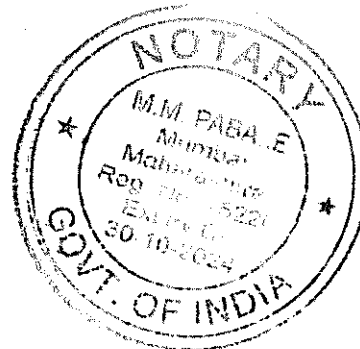
Versus

1. MR. RIVA TRINDADE

Major of age,

Resident of Palbrika Mansion, NIO Circle,

Dona Paula, Tiswadi, Goa – 403004;



2. MRS. ALBERTINA TRINDADE

Major of age,

Resident of Palbrika Mansion, NIO Circle,

Dona Paula, Tiswadi, Goa – 403004;

3. MRS. KARITA TRINDADE

Major of age,

Resident of Palbrika Mansion, NIO Circle,

Dona Paula, Tiswadi, Goa – 403004;

4. MR. MURLIDHAR SADARANGANI

Son of Shamdas Jetaram Sadarangani,

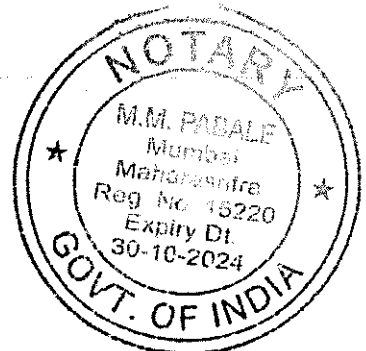
Aged 54 years, Indian,

Resident of S-3, Eden Hall, Dr. Annie Beasant Road,

Worli, Mumbai – 400 018.

... Respondents

(Above all are registered address)



TO
THE HON'BLE CHIEF JUSTICE AND
HIS OTHER COMPANION JUDGES

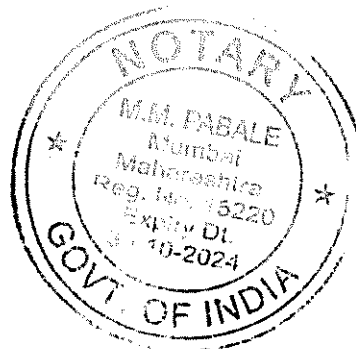
THIS HUMBLE APPLICATION OF THE
APPLICANT ABOVE-NAMED

MAY IT PLEASE YOUR LORDSHIP:-

Most respectfully Sheweth

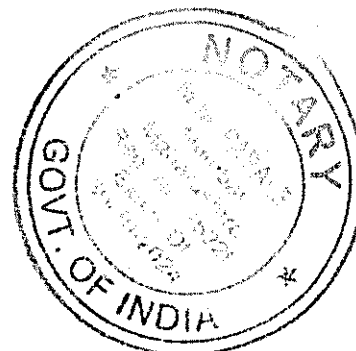
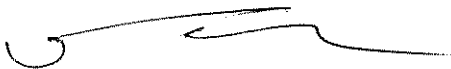
The Applicant above-named most respectfully begs to state and
submit as under:-

1. The Applicant by way of this Application seeks to invoke the
jurisdiction of this Hon'ble High Court vested in it in terms of



Section 11 (4) of the Arbitration & Conciliation Act, 1996 (hereinafter referred to as 'the said Act'), seeking appointment of an Arbitrator.

2. The Applicant herein, Mr. Vikram Shah, is the son of late Chinubhai Shah, aged 73 years, Indian, Residing at 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai – 400 006. .
3. The Respondent No. 1 herein is Mr. Riva Trindade, and is a resident of Palbrika Mansion, NIO Circle, Dona Paula, Tiswadi, Goa – 403 004.
4. The Respondent No. 2 herein is Mrs. Albertina Trindade, and is a resident of Palbrika Mansion, NIO Circle, Dona Paula, Tiswadi, Goa – 403 004.

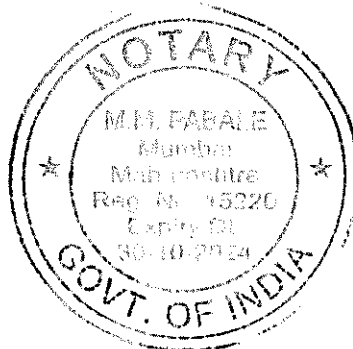


5. The Respondent No.3 is Mrs. Karita Trindade and is a resident of Palbrika Mansion, NIO Circle, Dona Paula, Tiswadi, Goa – 403 004.

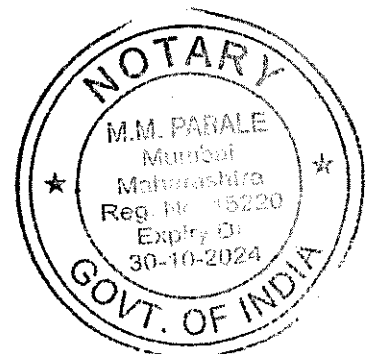
6. The Respondent No. 4 is Mr. Murlidhar Sadarangani, and is a resident of S-3, Eden Hall, Dr. Annie Beasant Road, Worli, Mumbai – 400 018.

7. It is respectfully submitted that for the purpose of a convenient disposal of the present application the facts circumscribing the dispute *inter se* the parties hereto, can be briefly stated thus :-

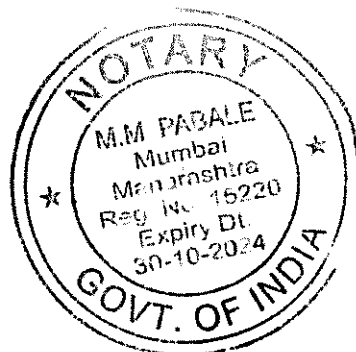
- a. The Applicant, Respondent No. 4 and late Pascoal Trindade had entered into an agreement viz. Articles of Association of Persons dated 01.04.2013 (*hereinafter referred to as "the said Agreement"*).



- b. That in terms of the said Agreement, two properties viz. property bearing Survey No. 93/3 and 93/4 of Village Bambolim, Tiswadi, Goa were made working assets of the business.
- c. That subsequently a Joint Venture Agreement (JVA) dated 25th April 2014 was entered into with a company namely, Kuval Projects Pvt. Ltd., for the purpose of development and construction on the said property more particularly described in the schedule to the said JVA upon the terms and conditions set out in the said agreement.
- d. In terms of the said JVA, Kuval Projects Pvt. Ltd., has paid an amount of Rs. 2,21,00,000/- (Rupees Two Crores Twenty One Lakhs Only) to PVM Associates as by way of non-interest bearing refundable deposit.

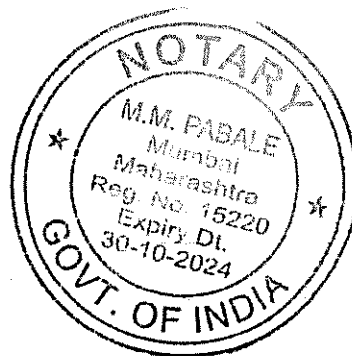
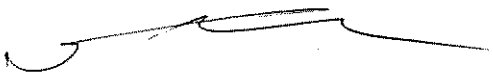


- e. After certain modifications in the plans and upon obtaining approval from the concerned authorities, the construction on the said properties commenced in the later part of the year 2015 and continued the same till 2020 by which time 80% of the construction was completed.
- f. However, all construction activities had to be abandoned due to an "injunction order" dated 13/03/2020 issued by Hon'ble Civil Court at Panaji, Goa in the Civil Suit No. 52/2013/A.
- g. In accordance with clause 4f of the said Agreement dated 25th April 2014, it was the responsibility of Late Mr. Pascoal Trindade and Mr. Vikram Shah to resolve any

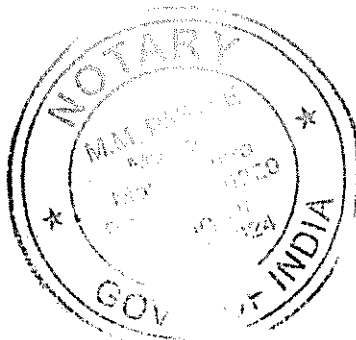


interferences/dispute by the Villagers in respect of the said property at their own cost.

h. Upon and after much persuasion from the Applicant herein, Mr. Vikram Shah, Late Mr. Pascoal Trindade agreed to settle the disputes raised by Comunidade of Bambolim amicably and requested Mr. Vikram Shah to negotiate the settlement terms with the Comunidade of Bambolim which terms were finally and mutually agreed by the parties concerned and accordingly a consent term draft was prepared and both the parties in the said suit viz. Comunidade of Bambolim and Late Mr. Pascoal Trindade alongwith Mrs. Albertina Trindade put their signatures of approval on the same.



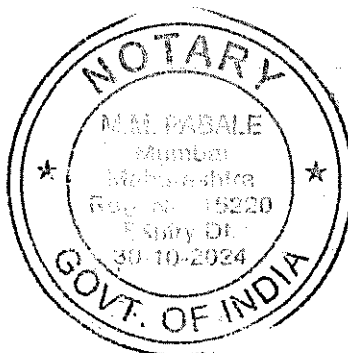
- i. Mr. Pascoal Trindade expired on 17.01.2022 leaving behind him, his widow, the Respondent No. 2 and his legatees, the Respondent No. 2 and 3.
- j. Prior to his demise, Mr Pascoal Trindade had forwarded the draft of approved consent terms to us. However due to intervening Covid pandemic and due to the untimely demise of Mr Pascoal Trindade the same could not be pursued further viz. obtaining various approvals from the Administrator of Comunidade, Tribunal of Comunidade and Revenue Dept, Govt. of Goa. The consent terms remained yet to be filed before the Hon'ble Court.
- k. After untimely demise of Late Mr. Pascoal Trindade, the Applicant solicited the support of the Respondents 1 to 3 as legal representatives of Late Mr. Pascoal Trindade



in order to defend the said suit / filing of consent terms. However, in spite of repeated request and plea by all concerned the said Respondents choose not to respond and/or come forward to co-operate and to attend or to pursue the proceedings pending before the Hon'ble Courts and also to sign various documents as required by the intending purchaser without assigning any reason whatsoever.

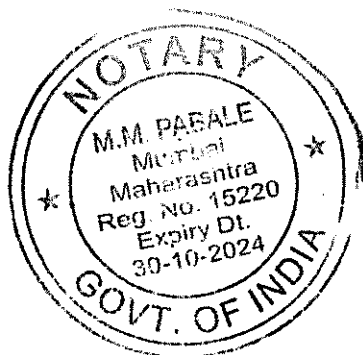
l. After the demise of Late Pascoal Trindade the Respondents Nos. 1 and 3 have been arraigned as parties to the said suit as his legal representatives/ heirs.

m. In October 2020, Mr. Vikram Shah along with Late Pascoal Trindade approached the Comunidade of Bambolim for the amicable settlement of all the litigations and even finalised the draft Consent Terms.



This fact is to your knowledge as Mr. Riva Trindade in his deposition before the Civil Court in the said Civil Suit has admitted the above facts.

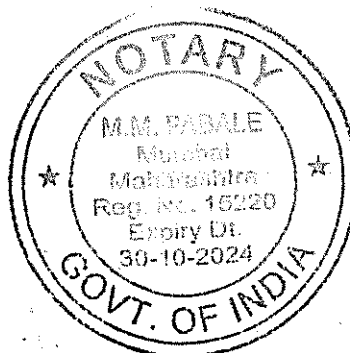
- n. That vide Letter dated 20.11.2020 addressed by Late Pascoal Trindade and Mrs. Albertina Trindade to the Managing Committee of the Comunidade of Bambolim, a proposal of settlement was offered in order to compromise all pending litigation and disputes with the Comunidade of Bambolim.
- o. On the basis of the representations made by Late Pascoal Trindade along with us to Loonkar Developers Pvt. Ltd., the said Loonkar Developers Pvt. Ltd. earmarked an area of 5,000 sq. mts., for allotment to the Comunidade of Bambolim for construction of certain facilities to be used as a recreational and welfare centre for the villagers on



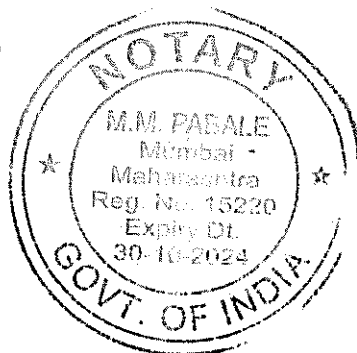
mutually agreed terms by and between M/s. Loonkar Developers Pvt. Ltd and us.

p. Thereafter vide Letter dated 27.11.2020 addressed by the legal representative of the Comunidade of Bambolim certain clarifications were sought in respect of the terms of settlement, and the Comunidade had informally accepted the same.

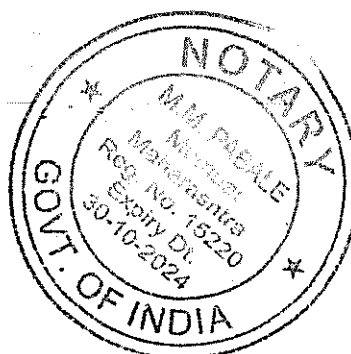
q. That in response thereto, we through our legal representative vide Letter dated 02.12.2020 provided clarification as sought by the Comunidade, specifically stating on instructions received by you, that Late Pascoal Trindade and Mrs Albertina Trindade were ready and willing to execute Consent Terms based on the terms of settlement offered.



r. As the terms of settlement with the Comunidade of Bambolim involves financial implications Late Mr. Pascoal Trindade and the Applicant had mutually agreed to sell the property bearing survey no. 93/4 to intending purchaser to generate the funding required to meet with the commitments made vide the consent terms viz payment to Comunidade of Bambolim, payment to M/s. Loonkar Developers Pvt. Ltd for and towards their allotment of part of their property and towards the construction cost of the football ground/welfare centre at the time of execution of consent terms and accordingly all the members of the consortium, were taken into confidence and their consent was taken in respect of the execution of Consent Terms and allotment of areas as required by the Comunidade of Bambolim, at a very reasonable valuation.



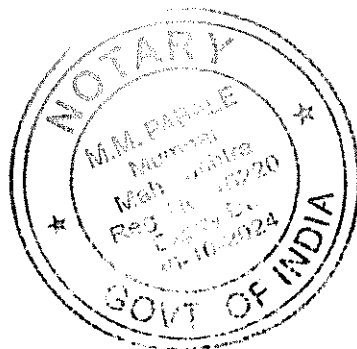
- s. In pursuance of the above draft consent terms were sent for the approval from the Administrative Tribunal and thereafter the Revenue Department. However, due to ill health of Late Pascoal Trindade in the later part of the year 2021 and thereafter his demise, the entire process was stalled.
- t. That despite various communications addressed by late Pascoal Trindade to the Comunidade of Bambolim as well as to the various authorities and further, despite the specific admissions made by the Respondent No. 1, Mr. Riva Trindade in his deposition before the Hon'ble Civil Court in the suit viz. SCS/52/2013/A, he has failed to come forth and render any co-operation for the closure of the proceedings and/or to execute the required documentation etc., which has all resulted in delay and



has jeopardised the investment made by us in the purchase and development of the said properties.

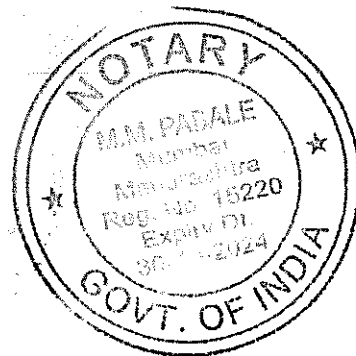
u. The Respondents Nos. 1, 2 and 3 have also failed to defend the interests of Mr. Pascoal Trindade in the said Civil Suit No. 52/2013/A pending before the Civil Judge Senior Division at Panaji and on account of the above there is likelihood of an adverse order being passed affecting interest/ interest of M/s. Loonkar Developers Pvt. Ltd. and M/s. Kuval Projects Pvt. Ltd.

v. It is borne out from the records that the Respondents Nos. 1 to 3 have failed to defend the interests of the Association of Persons in Case No. CRVA/43/2019 and Case No. CRVA/3/2020 by which the Comunidade of Bambolim had challenged the grant of development permissions in the properties bearing Survey No. 93/2,



93/3 and 93/4 of Village Bambolim, and on account of their default the Hon'ble District Court vide Order dated 30.10.2023 set aside the Order dated 28.11.2019 passed by the Director of Panchayats, Panaji, Goa thereby occasioning huge loss of Rs. 20,00,00,000/- (Rupees Twenty Crores) and further losses to M/s. Kuval Projects Pvt. Ltd. who had been given development rights in respect of the said property and is in all likelihood going to institute proceedings against the Applicant and the Respondent No. 4 for not diligently defending the above cases.

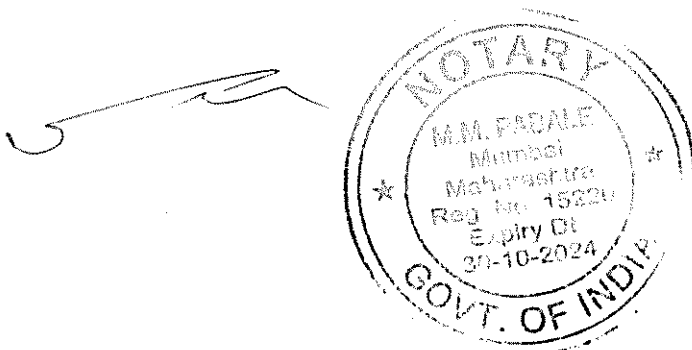
w. Further, the Respondents Nos. 1 to 3 have failed to defend the Civil Revision Application No. 41/2018 which was instituted before this Hon'ble High Court against the Order dated 23.10.2018 passed by the Civil Judge, Senior Division at Panaji in Case No.



CRA/2/2016/B directing the holding of an inquiry in respect of the Consent Terms arrived in Case No. SCS/222/1994, which consent terms are the very basis of the title to the said properties. Due to the non appearance, this Hon'ble High Court dismissed the said Civil Revision Application as abated as the Respondents Nos. 1 to 3 failed to co-operate and get themselves impleaded as the legal heir of late Pascoal Trindade.

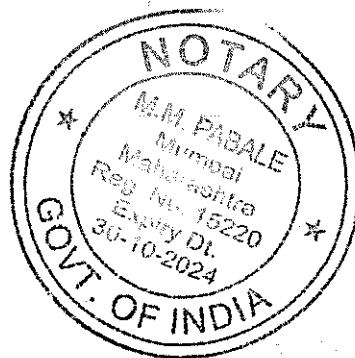
- x. That all the efforts for amicable resolution of pending litigations have been stalled on account of the non co-operation of the Respondents Nos. 1 to 2 and the same is in all likelihood going to result into a negative verdict being pronounced in respect of the said properties.

8. It is submitted that the Respondents Nos. 1 to 3 are therefore in a fundamental breach of the contractual obligations under



the said Agreement and as such disputes have arisen interfere the Applicant and the Respondents.

9. It is submitted that in terms of Clause 35 of the said Agreement the Applicant and the Respondent have mutually agreed to resolve any and all disputes arising out of the said Agreement by referring the same to Arbitration.
10. It is submitted that owing to the conduct of the Respondents Nos. 1 to 3, the Applicant was constrained to raise a dispute and invoked Clause 35 of the said Agreement vide Notice of Arbitration dated 28.02.2024 seeking reference of the said dispute to arbitrator.
11. However, the Respondents vide their reply dated 11.03.2024 refused to accept to refer the disputes to arbitration.



12. It is stated that in having failed to co-operate in the appointment of the arbitrator, within the period prescribed under Section 11 (4) (a) of the Arbitration and Conciliation Act, 1996, the Respondents have forfeited/ waived his right to participate in the process.

13. In such circumstances the Applicant is *per force* compelled to approach this Hon'ble High Court by way of the present Application in terms of the mandate of Section 11 (4) of the Arbitration and Conciliation Act, 1996.

14. The Applicant submits that it is entitled to an order under Section 11 (4) of the Arbitration and Conciliation Act, 1996.

15. The Applicant has not filed any other Application either in this Hon'ble Court or in the Supreme Court of India, regarding the subject matter of this Application.



16. The present proceedings are within limitation.

17. This Hon'ble Court has jurisdiction to hear and decide this Application in terms of Section 11 (4) of the Arbitration and Conciliation Act, 1996.

18. The Applicant has paid the prescribed Court Fees herewith.

19. The Applicant is not in receipt of any Notice of Caveat from the Respondent.

P R A Y E R S

The Applicant therefore pray as under:-

- a. That this Hon'ble Court be pleased to appoint a suitable Sole Arbitrator to resolve the dispute(s) *inter se* the
- 

Applicant and the Respondent in accordance with Clause
35 of the Articles of Association dated 01.04.2013;

- b. For such other and further relief that this Hon'ble Court
deems fit and proper.



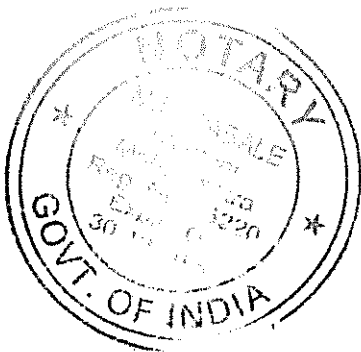
(APPLICANT)

Place :- Porvorim, Goa.

Date :- 12.04.2024

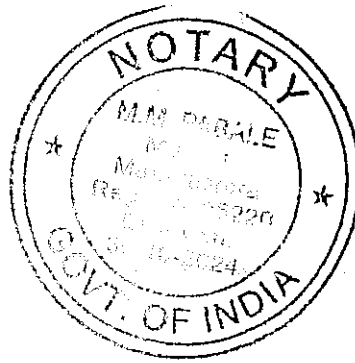
VERIFICATION

I, Vikram Shah, son of Chinubhai Shah, aged 73 years, Indian
national and resident of 28, Capri, Manav Mandir Road,
Walkeshwar, Mumbai, the Applicant herein, do hereby on solemn
oath verify the contents of the foregoing paragraphs 1 to 19 of the
present Application to be true and correct to my knowledge.



Solemnly verified at Panaji, Tiswadi, Goa on this 15th day of April,
2024.

Identified by:-



Advocates for the Applicant

DEPONENT

BEFORE ME

MANISH M. PABALE

B.Sc. LL.M.

ADVOCATE & NOTARY (GOVT. OF INDIA)

04, Natwar Chambers,
94 Nagindas Master Road,
Fort, Mumbai - 400 001.

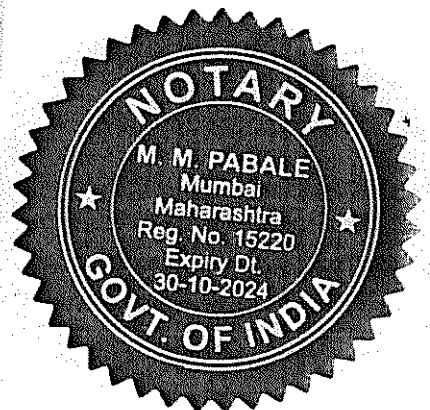
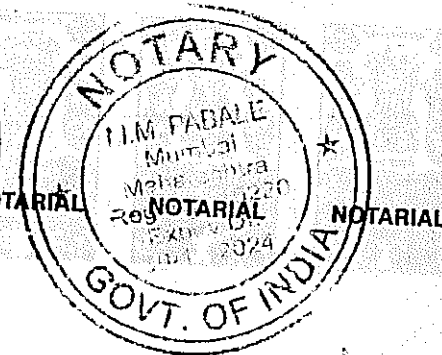
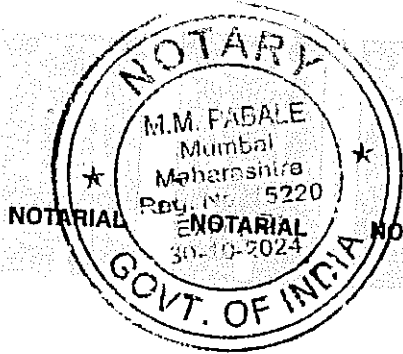
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Seen Org. / POA / Board Resol:

NOTED & REGISTERED

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Date: 15 APR 2024

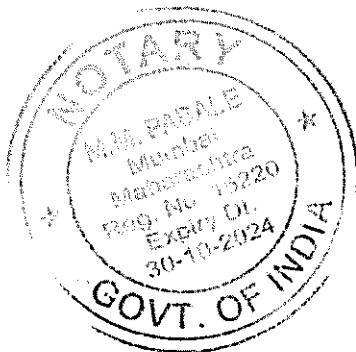


AFFIDAVIT

I, Vikram Shah, son of Chinubhai Shah, aged 73 years, Indian national and resident of 28, Capri, Manav Mandir Road, Walkeshwar, Mumbai, the Applicant herein, do hereby on solemn oath and affirmation state and submit as under:-

1. I state that I have read and understood the contents of the accompanying Application and the contents of the foregoing paragraphs 1 to 19 of the Application for Appointment of Arbitrator are true to my own knowledge and belief and nothing material has been concealed therefrom and I accordingly affirm the same.

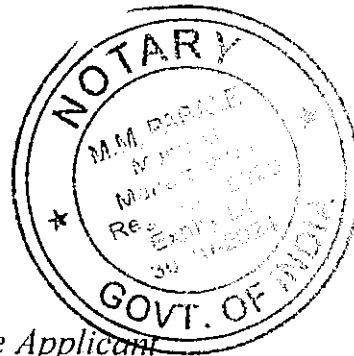
2. I state that the contents of the foregoing paragraphs 1 and 2 are true to my knowledge.



A handwritten signature in black ink, appearing to be "Vikram Shah", written over a horizontal line.

Solemnly verified at Porvorim, Goa on this 15th day of April, 2024.

Identified by:-



Advocates for the Applicant

DEPONENT

BEFORE ME

MANISH M. PABALE
B.Sc. LL.M.

ADVOCATE & NOTARY (GOVT. OF INDIA)
04, Natwar Chambers,
94 Nagindas Master Road,
Fort, Mumbai - 400 001.

ID / Aadhar / PAN / DL: 714563829307

Seen Org. / PCA / Board Resol.:

NOTED & REGISTERED

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Date: 15 APR 2024

